

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lianne May	Team: Squad #08	CCRB Case #: 202208392	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Tuesday, 11/29/2022 9:03 PM	Location of Incident: 145-19 Jamaica Avenue	18 Mo. SOL 5/29/2024	Precinct: 103		
Date/Time CV Reported Wed, 11/30/2022 8:05 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 12/08/2022 7:11 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Vincent Siraco	01968	951267	PBQS SU PST
2. PO Brian Nelson	15828	957895	PBQS SU PST
3. PO Michael Dunn	14637	955894	PBQS SU PST
4. PO Robert Kullak	13201	966143	PBQS SU PST
5. Officers			
6. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Anthony Minichini	00868	965342	PBQS SU PST
2. PO Mark Anderson	27500	950003	PBQS SU PST
3. LT Thomas Kaminski	00000	945867	PBQS SU PST
4. SGT Suzanne Lutz	01270	943677	103 PCT
5. PO Paul Jackson	11920	949135	103 PCT
6. PO Vincent Pastore	24978	971172	103 PCT
7. PO John Siderius	26528	971233	103 PCT
8. PO Derval Whyte	25206	971274	103 PCT
9. PO George Bodenmiller	26100	972383	103 PCT
10. PO Michael Castel	09688	972560	106 PCT
11. PO Steven Maietta	23071	933956	106 PCT
12. SGT Blake Taylor	05628	956295	FTU 19
13. PO Connor Hertzwig	30625	973468	JAMAICA AVE BID
14. PO Anthony Fletcher	17302	967875	103 PCT
15. SGT Michael Boyle	00825	946802	PBQS SU PST
16. PO Khrishan Jainaraine	15624	960718	103 PCT
17. SGT Michael Filomena	01973	954808	103 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . SGT Vincent Siraco	Abuse: Sergeant Vincent Siraco stopped § 87(2)(b)	A . Substantiated
B . SGT Vincent Siraco	Force: Sergeant Vincent Siraco used physical force against § 87(2)(b)	B . Within NYPD Guidelines
C . PO Michael Dunn	Force: Police Officer Michael Dunn used physical force against § 87(2)(b)	C . Within NYPD Guidelines

Officer(s)	Allegation	Inv. Div. Recommendation
D . PO Robert Kullak	Force: Police Officer Robert Kullak used physical force against § 87(2)(b)	D . Within NYPD Guidelines
E . PO Brian Nelson	Force: Police Officer Brian Nelson used physical force against § 87(2)(b)	E . Within NYPD Guidelines
F . SGT Vincent Siraco	Force: Sergeant Vincent Siraco used physical force against § 87(2)(b)	F . Within NYPD Guidelines
G . PO Brian Nelson	Force: Police Officer Brian Nelson used physical force against § 87(2)(b)	G . Substantiated
H . SGT Vincent Siraco	Force: Sergeant Vincent Siraco used physical force against § 87(2)(b)	H . Substantiated
I . An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b)	I . Within NYPD Guidelines
J . PO Michael Dunn	Discourtesy: Police Officer Michael Dunn spoke discourteously to § 87(2)(b)	J . Within NYPD Guidelines
K . SGT Vincent Siraco	Abuse: Sergeant Vincent Siraco threatened § 87(2)(b) with the use of force.	K . Within NYPD Guidelines
L . Officers	Force: Officers restricted § 87(2)(b) breathing.	L . Unfounded
M . Officers	Force: Officers struck § 87(2)(b) with a blunt instrument.	M . Unfounded
N . PO Robert Kullak	Off. Language: Police Officer Robert Kullak made remarks to § 87(2)(b) based upon race.	N . Unfounded
O . An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b)	O . Within NYPD Guidelines
P . PO Robert Kullak	Force: Police Officer Robert Kullak used physical force against § 87(2)(b)	P . Substantiated
Q . PO Brian Nelson	Force: Police Officer Brian Nelson used physical force against § 87(2)(b)	Q . Substantiated
R . SGT Vincent Siraco	Force: Sergeant Vincent Siraco used physical force against § 87(2)(b)	R . Substantiated
S . PO Brian Nelson	Discourtesy: Police Officer Brian Nelson spoke discourteously to § 87(2)(b)	S . Substantiated
T . PO Robert Kullak	Discourtesy: Police Officer Robert Kullak acted discourteously toward § 87(2)(b)	T . Substantiated
§ 87(2)(g), § 87(4-b)		

Case Summary

On November 30, 2022, Patrol Borough Queens South Lieutenant Thomas Kaminski reported the following complaint to the NYPD Internal Affairs Bureau. The CCRB received the complaint on the same date (BR1).

On November 29, 2022 at 9:03PM, Patrol Borough Queens South Sergeant Vincent Siraco, and Police Officers Brian Nelson, Michael Dunn, and Robert Kullak stopped § 87(2)(b) in a bodega at 145-19 Jamaica Avenue in Queens (**Allegation A: Abuse of Authority, Substantiated**). PO Kullak saw narcotics in § 87(2)(b) pocket and began to arrest him. § 87(2)(b) resisted, and the officers took him to the ground. While on the ground Sgt. Siraco punched § 87(2)(b) legs (**Allegations B-F: Force, Within NYPD Guidelines**). While on the ground, PO Nelson and Sgt. Siraco punched § 87(2)(b) in the face multiple times (**Allegations G and H: Force, Substantiated**). An officer stated, “we are gonna fuck you up,” and PO Dunn stated, “give me your fucking hands” (**Allegations I and J: Discourtesy, Within NYPD Guidelines**). Sgt. Siraco displayed his Taser’s warning arc (**Allegation K: Abuse of Authority, Within NYPD Guidelines**). Before being handcuffed, § 87(2)(b) alleged that officers restricted his breathing and hit him with weapons (**Allegations L and M: Force, Unfounded**). He also alleged PO Kullak called him the “N-word” (**Allegation N: Offensive Language, Unfounded**). After § 87(2)(b) was handcuffed, an officer stated, “stop fucking reaching” (**Allegation O: Discourtesy, Within NYPD Guidelines**). PO Kullak punched § 87(2)(b) and PO Nelson pulled § 87(2)(b) hood and hair (**Allegations P and Q: Force, Substantiated**). Sgt. Siraco held § 87(2)(b) head to the side when he was handcuffed (**Allegation R: Force, Substantiated**). PO Nelson stated, “I’m going to fuck you up and then you’ll be dead,” after the arrest (**Allegation S: Discourtesy, Substantiated**). PO Kullak wore 103 Precinct Devils Island patches on his uniform (**Allegation T: Discourtesy, substantiated; § 87(2)(g), § 87(4-b)**)

The investigation received three videos from the bodega at 145-19 Jamaica Avenue in Queens. The owners noted that the timestamps are incorrect; the bodega footage is 25 minutes and 13 seconds behind (BR2; BR3; BR4).

The NYPD Legal Bureau provided 25 body-worn camera (BWC) videos with accurate timestamps (BR5). The investigation used Sgt. Siraco’s (BR6) PO Kullak’s (BR7), PO Dunn’s (BR8), PO Nelson’s (BR9), and 103 Precinct Police Officer Khreshan Jainaraine’s (BR10) BWC videos.

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Vincent Siraco stopped § 87(2)(b)
§ 87(2)(b) testified to the CCRB on December 20, 2022, that on November 29, 2022, at approximately 9PM, he was walking alone to a bodega on 146th Street in Queens. He was smoking marijuana but had no other narcotics or weapons and did not interact with anyone before entering the bodega. In the bodega, § 87(2)(b) went to the counter while keeping his hands in his pockets because he was cold. Officers entered shortly after § 87(2)(b) PO Kullak and PO Dunn approached him. They asked § 87(2)(b) what was in his pockets, to provide his identification, and to remove his hands from his pockets. § 87(2)(b) complied, and PO Kullak told him the officers saw someone outside drop money and followed § 87(2)(b) denied knowing anything about this. PO Kullak first looked in and then physically searched § 87(2)(b) pockets before stating that § 87(2)(b) was under arrest (BR11).

As stated before, the bodega footage is 25 minutes and 13 seconds (BR2; BR3; BR4). The bodega security footage has no audio. To account for discrepancy in time, the timestamps noted in this report for both the BWC and bodega security footage will be the run time in the video file, not the

time at which the action happened. One of the interior bodega cameras (BR3), called Camera 4, is placed above the register, and shows the front door and the main part of the store from the employees' perspective. The other interior camera (BR4), called Camera 16, is placed above the front door and shows a side bar with coffee machines to the right, the register in the middle, and the back aisles of the store to the left.

Bodega security footage from the exterior of the bodega (BR2) from 6:47-7:27 shows the corner of 146th Street and Jamaica Avenue. There is a bus stop on Jamaica Avenue on the same side of the street as the bodega across 146th Street. § 87(2)(b) wears a black Adidas sweatshirt and a front pouch under his exterior jacket and holds a clear cup with liquid in his right hand. He walks from the bus stop, across 146th Street, and into the bodega. As he crosses 146th Street, § 87(2)(b) looks at a male who then follows him into the bodega. No items are exchanged, and the other male does not carry US currency. At 7:27, an unmarked sedan parks on the corner and Sgt. Siraco, PO Kullak, PO Dunn, and PO Nelson exit the vehicle and enter the bodega.

In both interior bodega videos (BR3; BR4), § 87(2)(b) enters the bodega at 7:27. He holds a clear cup of liquid, talks with other patrons in the store, and walks over to the register. At 7:48, all the officers enter the bodega. PO Kullak stands to § 87(2)(b) right, PO Dunn stands to § 87(2)(b) left, PO Nelson, who is wearing a hat, stands behind § 87(2)(b) and Sgt. Siraco stands near the door of the bodega. PO Dunn shines a light into § 87(2)(b) pouch, and § 87(2)(b) produces identification. PO Nelson gives the identification to Sgt. Siraco.

Sgt. Siraco (BR12), PO Kullak (BR13), PO Dunn (BR14), and PO Nelson (BR15) testified to the CCRB that they were assigned to Public Safety in an unmarked car near Jamaica Avenue and 146th Street in Queens, an area known for narcotics transactions, robberies, and bars where people publicly consume alcohol. The officers had no familiarity with § 87(2)(b). All the officers noticed § 87(2)(b) as § 87(2)(b) shouted at another male. The other male was holding US currency and had approached § 87(2)(b) on the sidewalk. § 87(2)(b) was holding a clear plastic cup with liquid. The officers were suspicious of the container of liquid because it could have been alcohol given the nearby bars. The other male dropped the currency on the ground. § 87(2)(b) looked at the officers' car and yelled at the other male to stop following him. The officers testified that the currency, shouting, and looks at the officers' car indicated an attempted hand-to-hand narcotics exchange and did not see § 87(2)(b) with any money or narcotics. The other male left the location and § 87(2)(b) proceeded into a bodega. PO Dunn parked the car, and all the officers entered the bodega. The officers explained that they followed § 87(2)(b) into the bodega to ensure that he was not robbed, to ask him about the interaction, to conduct a wellness check, and to confirm if the container had alcohol in it. All the officers discussed entering the bodega to ensure the situation did not escalate after the street encounter. The officers testified that at this point, none of § 87(2)(b) actions were illegal. When viewing the exterior bodega footage, the officers testified to the CCRB that they did not see any hand-to-hand exchange and the male behind § 87(2)(b) in the bodega footage was not the male with currency.

As per *People v. DeBour*, 40 N.Y. 2d 210, 233 (1976), an officer may stop and question a person when the officer has a reasonable suspicion that the person has committed, is committing, or is about to commit a felony or misdemeanor (BR16).

Sgt. Siraco testified that he saw § 87(2)(b) was walking on the street alone holding a clear cup of liquid in a narcotics-prone location and interacting with another male holding money. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation A** be closed as **Substantiated**.

Allegation (B) Force: Sergeant Vincent Siraco used physical force against § 87(2)(b)

Allegation (C) Force: Police Officer Michael Dunn used physical force against § 87(2)(b)

Allegation (D) Force: Police Officer Robert Kullak used physical force against § 87(2)(b)

Allegation (E) Force: Police Officer Brian Nelson used physical force against § 87(2)(b)

Allegation (F) Force: Sergeant Vincent Siraco used physical force against § 87(2)(b)

Allegation (G) Force: Police Officer Brian Nelson used physical force against § 87(2)(b)

Allegation (H) Force: Sergeant Vincent Siraco used physical force against § 87(2)(b)

Allegation (I) Discourtesy: An officer spoke discourteously to § 87(2)(b)

Allegation (J) Discourtesy: Police Officer Michael Dunn spoke discourteously to § 87(2)(b)

Allegation (K) Abuse of Authority: Sergeant Vincent Siraco threatened § 87(2)(b) with the use of force.

Allegation (L) Force: Officers restricted § 87(2)(b) breathing.

Allegation (M) Force: Officers struck § 87(2)(b) with a blunt instrument.

Allegation (N) Offensive Language: Police Officer Robert Kullak made remarks to § 87(2)(b) based upon race.

Allegation (O) Discourtesy: An officer spoke discourteously to § 87(2)(b)

Allegation (P) Force: Police Officer Robert Kullak used physical force against § 87(2)(b)

Allegation (Q) Force: Police Officer Brian Nelson used physical force against § 87(2)(b)

Allegation (R) Force: Sergeant Vincent Siraco used physical force against § 87(2)(b)

§ 87(2)(b) testified to the CCRB that officers told him he was arrested and put one handcuff on his wrist. § 87(2)(b) immediately started moving away from the officers while attempting to ask what they were doing. The officers stated § 87(2)(b) was resisting and started to grab, hit, and push him to the ground before punching him. § 87(2)(b) alleged PO Kullak called him the “N-word” while he and another officer beat § 87(2)(b) with a weapon. § 87(2)(b) alleged that all four officers were on top of him and their weight prevented him from breathing. § 87(2)(b) lost consciousness while on the ground and only regained it once the officers stood him up. When he was standing in handcuffs, Sgt. Siraco twisted § 87(2)(b) neck. Officers took him to the hospital where doctors stated the officers broke his right orbital socket (BR11).

§ 87(2)(b) agreed to sign, but never returned, his HIPAA form and therefore the investigation could not request medical records.

Arrest #§ 87(2)(b) for criminal possession of a controlled substance, intent to sell, resisting arrest, and public alcohol consumption states that PO Nelson saw § 87(2)(b) conducting an attempted

hand-to-hand narcotics transaction for US currency and holding an open container of alcohol. He resisted being placed under arrest (BR17).

A Threat, Injury, and Resistance report (BR18) states PO Dunn, PO Nelson, Sgt. Siraco, and PO Kullak used hand strikes and a takedown to overcome § 87(2)(b) aggression and flight. Sgt. Siraco and PO Kullak suffered injuries. § 87(2)(b) reached multiple times toward his waistband after ignoring orders to comply. § 87(2)(b) had a fractured right orbital bone.

§ 87(2)(a) – PHL 18(6)

In PO Kullak's BWC (BR7) at 00:35, PO Kullak pulls out § 87(2)(b) left pocket to show a black plastic bag. The contents of the bag are not visible. PO Kullak further pulls out § 87(2)(b) pocket to look at the bag.

In both of the interior bodega footages (BR2; BR3) from 9:09-10:00, § 87(2)(b) walks to the back of the bodega. PO Dunn and PO Kullak grab § 87(2)(b) arm at 9:09 to pull § 87(2)(b) between them and hold § 87(2)(b) hands in front of him. PO Nelson walks to § 87(2)(b) as Sgt. Siraco stands by the door. At 9:22, PO Kullak, PO Dunn, and PO Nelson hold onto § 87(2)(b) as he pulls away from the officers. At 9:33, all officers hold § 87(2)(b) arms behind his back. At 9:48, § 87(2)(b) pulls his right arm free so that it moves in front of PO Dunn's face and close to Sgt. Siraco's back but does not make contact with anyone. All the officers push § 87(2)(b) backward, knocking down items, and then pull him forward to the front door of the bodega as they take him to the ground.

In a multi-camera video showing the two interior bodega security videos and PO Dunn's BWC (BR19) playing at once, audio begins at 00:30 and officers give § 87(2)(b) multiple orders to relax as he pulls away from them. § 87(2)(b) yells at the officers to stop and at 00:55, moves his right fist toward Sgt. Siraco. Officers yell at § 87(2)(b) multiple times to get on the ground and the BWC falls off at 1:09.

In Sgt. Siraco's BWC (BR6) from 1:10-1:25, Sgt. Siraco and the other officers struggle with § 87(2)(b) as they begin the takedown. At 1:15, Sgt. Siraco's BWC falls to the ground and no movement is seen. At 1:17, an officer states, "we are going to fuck you up."

In both interior bodega videos (BR2; BR3) at 9:56-10:50, the officers are behind § 87(2)(b) as they continue the takedown. Officers hold onto § 87(2)(b) head, arms, and chest. At 10:05, in Camera 16 (BR4), the officers struggle with § 87(2)(b) next to an ATM near the door and fall into the door so that it opens and closes. The officers and § 87(2)(b) then fall to the floor. At 10:10, § 87(2)(b) is laying on his left side and faces the register. PO Nelson uses his left arm to hit the right side of § 87(2)(b) face a minimum of four times before § 87(2)(b) head lowers below the camera view. At 10:14, Sgt. Siraco strikes § 87(2)(b) legs three times. At the time of PO Nelson's and Sgt. Siraco's strikes, PO Dunn, PO Nelson, and Sgt. Siraco kneel and stand above § 87(2)(b) laying on the ground. At 10:17, Sgt. Siraco circles around and kneels by § 87(2)(b) head. In Camera 4 (BR3) showing the same strikes, officers fall to the ground at 10:08. § 87(2)(b) cannot be seen but PO Nelson appears to deliver five hand strikes to § 87(2)(b) face. Sgt. Siraco delivers three hand strikes to the legs. At 10:18, Sgt. Siraco moves to § 87(2)(b) head and closer to PO Nelson and delivers one hand strike to § 87(2)(b) face.

In both of the interior bodega footages (BR2; BR3), there were approximately eight other patrons in the bodega and five of them dodge the officers' take down to pick up the fallen BWC's, phones,

and chips. At 10:33, Sgt. Siraco takes out his Taser and points it at § 87(2)(b) head. § 87(2)(b) is face down on the ground and no officers have their weight on § 87(2)(b) head, neck, shoulders, or torso. At 10:48, Sgt. Siraco holsters his Taser. § 87(2)(b) is handcuffed on the ground.

In a multi-camera video showing the two interior bodega security videos and PO Dunn's BWC (BR19), after officers talk about restraining § 87(2)(b) at 1:39, Sgt. Siraco states that he will Tase him. § 87(2)(b) lays face down on the ground and the officers' bodies block what § 87(2)(b) is doing with his hands. A Taser cycle is deployed from 1:46-1:50. Officers yell multiple times for § 87(2)(b) to give him his hands before PO Dunn states, "give me your fucking hands" from 2:27-2:37. From 3:53-4:10, § 87(2)(b) lays handcuffed on his side and does not show his hand or arms. An officer tells § 87(2)(b) to "stop fucking reaching."

In PO Minichini's BWC (BR20) from 1:29-1:40, officers raise § 87(2)(b) to a sitting position after handcuffing him and stand behind him as he slumps backwards. PO Kullak kneels next to him and enters his pockets to pull out cigarettes. Officers tell § 87(2)(b) to stop reaching. At 1:36, PO Kullak yells, "stop reaching" and punches § 87(2)(b) stomach.

At 13:15 in both interior videos (BR3; BR4), the officers stand § 87(2)(b) up in handcuffs. § 87(2)(b) moves his body back and forth while PO Kullak, PO Nelson, and another officer hold his hands back while pulling his arms up behind him. It cannot be seen on the bodega footage if § 87(2)(b) is spitting at officers.

In a multi-camera video showing the two interior bodega videos and PO Dunn's BWC (BR19) at 4:53, Sgt. Siraco holds § 87(2)(b) head to the side for 45 seconds after he allegedly spit at officers.

At 13:29 in both interior bodega videos (BR3; BR4), PO Nelson stands behind § 87(2)(b) and grabs § 87(2)(b) hair and hood to pull his head back. § 87(2)(b) stumbles back and then pulls forward against the officers holding his arms. At 13:25, PO Dunn pushes § 87(2)(b) into Sgt. Siraco, who is standing behind § 87(2)(b). From 13:40-14:25, Sgt. Siraco grabs § 87(2)(b) chin and pulls his head 90 degrees to the right. As Sgt. Siraco grabs § 87(2)(b) head, Camera 4 shows PO Nelson pulling Sgt. Siraco's arm and shoulder away from § 87(2)(b) at 13:43. Sgt. Siraco alternates between using one and both of his arms to hold § 87(2)(b) head around his forehead. At 14:20, Sgt. Siraco tries to put a mask on § 87(2)(b) but it snaps off quickly. PO Dunn takes § 87(2)(b) outside at 14:27. No spitting can be seen in any of the footage.

Sgt. Siraco testified to the CCRB that (BR12) he heard someone state, "don't swing," and understood that § 87(2)(b) was attempting to punch Sgt. Siraco when he pulled his arm free, but he was never hit. The officers attempted to bring him to the ground and Sgt. Siraco swept § 87(2)(b) legs from under him while other officers took him down. Everyone fell to the ground as Sgt. Siraco was trying to pull § 87(2)(b) arms behind his back. Sgt. Siraco punched § 87(2)(b) torso when § 87(2)(b) hands were under his body. Sgt. Siraco unholstered his Taser and deployed dry cycles to gain voluntary compliance, but never Tased § 87(2)(b). Sgt. Siraco punched § 87(2)(b) face once before pulling § 87(2)(b) hands behind his back because he deemed it to be more effective than a hand strike to his torso. After the officers handcuffed and stood § 87(2)(b) up, Sgt. Siraco heard officers tell § 87(2)(b) to stop spitting, but did not see this himself. Sgt. Siraco grabbed § 87(2)(b) head and held it to the side to prevent spitting.

Sgt. Siraco, PO Dunn, PO Kullak, and PO Nelson testified to the CCRB that they never told § 87(2)(b) “we are going to fuck you up,” or “stop fucking reaching.” They denied making any racial slurs. They could not identify who made the discourteous statements on the BWC recordings (BR12; BR13; BR14; BR15).

PO Dunn (BR13) testified to the CCRB that he only confirmed that the container had alcohol after smelling it in the bodega, after the stop, but before anyone saw any narcotics. PO Dunn explained that he told § 87(2)(b) to “give me your fucking hands,” because § 87(2)(b) was pulling his hands away while they were trying to arrest him. He made this statement out of frustration at the stressful situation.

PO Kullak (BR14) testified to the CCRB that at 00:35 in his BWC, he saw the black plastic bag in § 87(2)(b) pocket and from his eye level, he saw it was filled with smaller bags full of cocaine. He acknowledged that the BWC did not show exactly what he saw. He stated to the other officers “220,” meaning the penal law for narcotics so that the officers knew to arrest him for the cocaine. This changed the situation from just a summons for the open container to an arrest for narcotics. PO Kullak explained he was later frustrated with § 87(2)(b) hands moving around after they handcuffed him, and he was sitting on the ground and the officers were trying to search him. PO Kullak began to punch him but stopped himself from fully punching § 87(2)(b). PO Kullak claimed he made light physical contact with him and “used no force.”

PO Nelson (BR15) testified to the CCRB that he participated in the take down and then delivered hand strikes because § 87(2)(b) was reaching into his pants and was resisting the officers. § 87(2)(b) was still resisting when handcuffed by moving his entire body side to side. To gain control, PO Nelson grabbed his hood and pulled back. PO Nelson did not recall if he also pulled § 87(2)(b) hair.

As per Patrol Guide 221-01, force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or when it is reasonable to place a person in custody or to prevent escape from custody. Any application of force must be reasonable under the circumstances. All members of the service must use reasonable force, employ less lethal alternatives, and prioritize de-escalation. Use any level of force on handcuffed individuals is prohibited (BR21).

Per NYPD Patrol Guide Procedure 200-02, the mission of the NYPD is to enhance the quality of life in New York City by working in partnership with the community to enforce the law, preserve peace, protect the people, reduce fear, and maintain order. The NYPD maintains a higher standard of integrity than is generally expected of others. Additionally, it is their mission to value human life, respect the dignity of each individual and render their services with courtesy and civility (BR22).

According to DCT Case No. 2018-18951, officers have a responsibility to act with decorum in their interactions with civilians, though there are certain situations where profane remarks made during a stressful or chaotic situation do not constitute misconduct (BR23).

Patrol Guide Procedure 221-08 defines active resisting as physically evasive movements to defeat a member of the service’s attempt at control, including bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into or retained in custody. CEWs should only be used against persons who are actively resisting, exhibiting active aggression or to prevent individuals from physically injuring themselves or other person(s) actually present (BR24).

Testimony and footage show a chaotic situation in which officers arrest an actively resisting § 87(2)(b). § 87(2)(b) acknowledged in his CCRB testimony that he was resisting the officers. BWC and security footage show his resistance and refusal to comply with verbal commands. The officers first tried to deescalate by issuing verbal commands. The officers testified that he tried to punch the officers when first handcuffed, but § 87(2)(b) did not make contact with anyone and was resisting only by pulling his arm away from officers. Footage shows the force the officers used at this juncture, the takedown and then punches to the legs, § 87(2)(g).

§ 87(2)(b) Sgt. Siraco deployed a warning arc when § 87(2)(b) was still refusing to comply while other patrons watched the arrest. At the time Sgt. Siraco arced his Taser, § 87(2)(b) was actively resisting, § 87(2)(g).

§ 87(2)(b) it is recommended that **Allegations B-F** and **Allegations I-K** be closed as **Within NYPD Guidelines**.

In the interior bodega footage, Sgt. Siraco and PO Nelson use multiple hand strikes to § 87(2)(b) face. § 87(2)(b) right orbital socket was fractured as a result of this incident, § 87(2)(g) PO Nelson, in particular, struck § 87(2)(b) several times on the same side of the face where § 87(2)(b) orbital socket was fractured. Sgt. Siraco and PO Nelson acknowledged in their CCRB testimonies that they used these strikes to place § 87(2)(b) into custody because he was resisting. However, while § 87(2)(b) was actively resisting arrest, there were four officers, many of whom were larger than § 87(2)(b) who were on top of him trying to pull his arms free. § 87(2)(b) was not suspected of committing a violent crime, and the officers never suspected he had any weapons on him. § 87(2)(g)

§ 87(2)(b) Therefore, **Allegations G and H** should be closed as **Substantiated**.

§ 87(2)(b) alleged that officers restricted his breathing, hit him with weapons, and that PO Kullak called him the “N-word.” The officers testified, and footage shows, that no officer was positioned with his weight on § 87(2)(b) in a manner that would intentionally restrict his breathing, and that they never hit him with any weapons. It also shows that PO Kullak did not call him the “N-word.” BWC shows § 87(2)(b) never stated he could not breathe. § 87(2)(g) it is recommended that **Allegations L-N** should be closed as **Unfounded**.

§ 87(2)(b) was handcuffed when he was sitting, prior to being stood up. While he was sitting down, PO Kullak punched him. § 87(2)(g) PO Nelson pulled § 87(2)(b) hood and hair back and Sgt. Siraco held § 87(2)(b) head with both arms for 45 seconds after his arrest because of the alleged spitting. No footage shows the alleged spitting although officers explained that they were responding to that. Additionally, PO Nelson attempted to pull Sgt. Siraco off § 87(2)(b) head, § 87(2)(g)

§ 87(2)(b) Therefore, **Allegations P-R** should be closed as **Substantiated**.

Allegation (S) Discourtesy: Police Officer Brian Nelson spoke discourteously to § 87(2)(b).

In PO Jainaraine's BWC (BR10) from 1:33-1:45, PO Dunn and PO Nelson bring a handcuffed § 87(2)(b) outside to marked police cars. PO Nelson is wearing a beanie. § 87(2)(b) is arguing with the officers and calling them "fucking liars." The investigation determined that from 1:42-1:45, PO Nelson looks at § 87(2)(b) and states, "I'm going to fuck you up and then you'll be dead."

PO Nelson (BR15) explained he used profanity because he was frustrated with § 87(2)(b). However, PO Nelson heard himself in the BWC say, "get the fuck in the car" and did not hear, "I'm going to fuck you up and then you'll be dead."

Per NYPD Patrol Guide Procedure 200-02, the NYPD maintains a higher standard of integrity than is generally expected of others. Additionally, it is their mission to value human life, respect the dignity of each individual and render their services with courtesy and civility (BR22).

PO Nelson cursed at § 87(2)(b) after § 87(2)(b) had been arrested and secured. Although PO Nelson said he heard a different statement than the one captured on BWC, he acknowledged that he used profanity out of frustration. § 87(2)(g)

§ 87(2)(g) It is therefore recommended **Allegation S** be closed as **Substantiated**.

Allegation (T) Discourtesy: Police Officer Robert Kullak acted discourteously toward

§ 87(2)(b)

§ 87(2)(g), § 87(4-b)

In PO Nelson's BWC at 6:30, the investigation took a screenshot showing PO Kullak's vest (BR25). He has two patches. One is a skeleton hand with the two middle fingers and thumb down. The patch on the left states, "103rd Precinct. Devils Island. Jamaica New York," around a skull.

PO Kullak testified to the CCRB that he wore those patches on his vest because he used to work in the 103 Precinct and still wears them because he wants to carry something with him from when he was assigned to that command. Devils Island is the 103 Precinct slogan. These patches are not NYPD-approved, and he wore them because "they look cool" (BR14).

Per NYPD Patrol Guide Procedure 200-02, the mission of the NYPD is to enhance the quality of life in New York City by working in partnership with the community to enforce the law, preserve peace, protect the people, reduce fear, and maintain order. The NYPD maintains a higher standard of integrity than is generally expected of others. Additionally, it is their mission to value human life, respect the dignity of each individual and render their services with courtesy and civility (BR22).

According to Patrol Guide Procedure 204-01, members of service must not modify prescribed uniforms in any manner except as specifically authorized by higher authority (BR26).

PO Kullak explained that he wore the patches from his time at the 103 Precinct but that he knew they are not sanctioned by the NYPD. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that Allegations T and U be closed as **Substantiated** and **Other Possible Misconduct Noted**.

Civilian and Officer CCRB Histories

- § 87(2)(b) [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
- Police Officer Robert Kullak has been a member of service for four years and has been a subject in 5 CCRB complaints and eight allegations, none of which were substantiated. § 87(2)(g)
[REDACTED]
- Sergeant Siraco has been a member of service for 11 years and has been a subject in seven CCRB complaints and 15 allegations, of which one was substantiated: § 87(2)(g)
[REDACTED]
 - 201809869 involved a substantiated allegation of a vehicle search in which the NYPD imposed formalized training.
- Police Officer Michael Dunn has been a member of service for nine years and has been a subject in eight CCRB complaints and 19 allegations, of which two were substantiated. § 87(2)(g)
[REDACTED]
 - 202008469 involved substantiated allegations of failure to provide an RTKA card and a search of premises. The Board recommended Charges and the NYPD has yet to impose discipline (BR30).
- Police Officer Brian Nelson has been a member of service for eight years and has been a subject in nine CCRB complaints and 25 allegations of which two were substantiated. § 87(2)(g)
[REDACTED]
 - 201701883 involved allegations of physical force and the NYPD imposed no penalty.
 - 202003279 involved allegations of a discourtesy and the Board recommended command discipline A and the NYPD imposed no penalty.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- § 87(2)(b) [REDACTED] filed a Notice of Claim with the City of New York claiming personal and physical injuries and seeking \$1 million as redress (BR32). There is no 50H hearing scheduled.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad: 8

Investigator: Lianne May Supervising Investigator Lianne May April 5, 2023

Reviewer: _____

Signature _____ Print Title & Name _____ Date _____